

**IN THE SUPERIOR COURT OF
THE STATE OF WASHINGTON
COUNTY OF KING**

ZACKARIAH BENNETT,
Plaintiff,
vs.
MELVINA MANNING,
Defendant.

Cause No.: 23-2-11352-7

NOTICE OF APPEAL

TO: THE CLERK OF THE COURT AND TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

NOTICE IS HEREBY GIVEN that Plaintiff, Zackariah Bennett, appeals to the Court of Appeals, Division 1, of the State of Washington from the order granting summary judgement entered by this Court on 07/03/2024, and the order denying plaintiff's motion to strike false statements and incorporation of new evidence; and denying plaintiff's motion for sanctions entered on 07/02/2024; all in the above-entitled action.

1. Appellant's Information:

- Name: Zackariah Bennett
- Address: 17 Old Mountain rd
- Telephone: 5413008792
- Email: zackjbennett@gmail.com

2. Respondent's Information:

- Name: Melvina Manning
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- Respondent's Attorney
- Nancy Gass
- Attorney at Law
- O.W. Hollowell & Associates
- 4471 Tolt Avenue
- P.O. Box 1041
- Carnation, WA 98014
- Tel: (425) 333-4848

ORDER/JUDGMENT BEING APPEALED:

The specific orders/judgments being appealed are the [Order/Judgment] entered on 07/02/2024 & 07/03/2024, which granted Defendant's Motion for Summary Judgment, and denied Plaintiff's Motion to Strike false statements from record, as well as Plaintiff's Motion to Sanction Ms. Gass both for providing them to the court and for not removing them from record after becoming aware the statements were false and/or so misleading as to be construed as false.

STATEMENT OF GROUNDS FOR APPEAL:

The grounds for this appeal include but are not limited to:

1. Failure to consider Plaintiff's opposition to the summary judgment motion, encompassing significant factual disputes and evidence.
2. Misrepresentations made by Defendant's counsel affecting the decision-making process.
3. Newly discovered evidence impacting the understanding of crucial facts.
4. Failure to consider evidence refuting the credibility\authenticity of material statements upon which the court's decision was based..
5. Misapplication of legal standards and incorrect application of statutes.
6. Fundamental importance of the parent-child relationship as recognized by RCW 26.09.002 and related case law.
7. Failure to address allegations in the complaint that (if true) amount to child abuse.
8. Failure to address complaints made against opposing counsel concerning dishonesty and various ethical violations.
9. Misconduct and fraud upon the court by Nancy Gass/Carnation Law, counsel for the Defendant.

A more detailed argument and basis for this appeal will be presented in the appellant's brief.

DATED this 24th day of July, 2024.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', written over the printed name.

Zackariah Bennett
Plaintiff Pro Se
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